

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

NOTICE UNDER CODE OF CIVIL

PROCEDURE SECTION 128.7, SUBDIVISION

(c)(1), AND DECLARATION OF PLAINTIFF

(Serve on defendants and defense counsel identified on the
preceding caption; **not for filing with the Clerk** until subdiv. (c)(1)
prerequisites are satisfied absent withdrawal/correction of
challenged papers)

**Cross-noticed for pending defense hearings (this case, Dept.
301):**

#	Motion	Date / dept / judge
(1)	MFL / leave (SAC)	Apr. 30, 2026
(2)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:30 a.m. ; Dept. 301; Hon. Christine Van Aken
(3)	Strike (Code Civ. Proc., § 436)	May 22, 2026 ; Dept. 301; Hon. Christine Van Aken
(4)	Demurrer	Hrng. date [TBD] (reserved)

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

1 **I. SAFE HARBOR NOTICE UNDER SECTION 128.7, SUBDIVISION (C)(1)**

2 **IMPORTANT: SERVICE ONLY.** Plaintiff Franciscus Dylan Rosario submits this Notice and
3 Declaration pursuant to Code of Civil Procedure section 128.7 only for **service** on offending parties
4 and their counsel. This Notice is **not a filing** for clerk registration for sanctions purposes unless
5 and until any motion that may follow complies with subdivisions (c)(1) (twenty-one calendar day
6 harbor) and (j) (service), and Plaintiff elects to file such a motion thereafter.

7 **Notice to offending parties and counsel.** Plaintiff gives notice pursuant to Code of Civil Pro-
8 cedure section 128.7, subdivision (c)(1), concerning papers and contentions Plaintiff contends
9 violate section 128.7, subdivision (b), including subdivisions **(2)** and **(3)** and grounds involving
10 insufficiently supported **factual contentions**, as particularized in the Exhibit Key and underlying
11 memoranda served concurrently. This Notice is conditioned on Plaintiff's contemporaneous ser-
12 vice of the explanatory memoranda and lodged authorities listed in the Exhibit Key below, which
13 Plaintiff expects to cite as portions of supporting papers accompanying any contemplated motion
14 for sanctions (section 128.7, subd. (j)).

15 **Twenty-one calendar-day safe harbor.** Under subdivision (c)(1), a motion for sanctions under
16 section 128.7 ordinarily *must not be filed with nor presented to the court* unless, after **service** upon
17 the offending party of *the motion and any supporting papers*, the challenged papers or positions are
18 **not withdrawn or appropriately corrected within twenty-one calendar days**. By this Notice
19 Plaintiff triggers that harbor concerning the challenged matters described herein. Plaintiff **reserves**
20 **all rights**; nothing herein waives any motion, objection, citation to authority, sanctions request in
21 other vehicles, regulatory complaint, fee motion, opposition, amendment, judicial notice objection,
22 remedy, appeal, extraordinary writ petition, tolling or discovery argument expressly or impliedly
23 waived.

24 **Challenged matters (within the meaning of subdivisions (f) through (j)).** In this Court (Dept.
25 301), the challenged proceedings and papers Plaintiff identifies for safe-harbor purposes include,
26 without implied limitation, defendants' operative **special motion(s) to strike** under Code of Civil
27 Procedure section 425.16; **motion(s) under section 436** attacking the pleadings where those pa-
28 pers import anti-SLAPP or "absolute immunity" themes inappropriate to statutory strike prac-

1 tice; related **demurrers** relying on defenses or theories incorporated from such motions and re-
2 lated papers; defenses and oppositions in the **MFL/SAC** sequence on calendar Apr. 30, 2026 that
3 repackage the identical “protected activity” characterization; accompanying **oppositions/replies**;
4 and affirmative defenses asserting availability of immunity from Plaintiff’s statutes-based claims
5 inconsistent with Plaintiff’s lodged black-letter exhibits. Plaintiff incorporates by reference the
6 caption cross-notice calendar for Dept. 301.

7 **Exhibit Key — contemporaneously served explanatory documents (CGC-25-631801).** Plain-
8 tiff concurrently serves counsel of record printed or electronic duplicates of:

ID Document (electronic basename)

- A MEMORANDUM-42517-425-17C-CROSS-HEARING-801.pdf
- B NOTICE-LODGING-SUPPL-AUTH-42517-CROSS-HEARING-801.pdf
- C OMNIBUS-OPPOSITION-BLACKLETTER-CONTRADICTIONS-801.pdf
- D RJN-SUPPLEMENTAL-42517-CROSS-HEARING-801.pdf
- E SUPPL-MEMO-CUSTOMER-DOCTRINE-42517-CROSS-HEARING-801.pdf

9
10 **Rationale for contemplated sanctions briefing.** Plaintiff’s concurrently served explanatory doc-
11 uments (Exhibits A through E in the Exhibit Key above) distill why, in Plaintiff’s view, Code of
12 Civil Procedure section 425.17, subdivision (c), categorically withholds reliance on Anti-SLAPP
13 procedure for commercial insurer and insurer-funded defense conduct; contradict particular de-
14 fense characterizations against controlling statute and appellate authority (*Club Members; Simp-*
15 *son Strong-Tie*); and frame Customer / third-party-claimant duties material to whether defense
16 positions satisfy good-faith pleading and briefing obligations. Those documents comprise part of
17 Plaintiff’s contemplated supporting record under subdivision (j).

18 **Compliance / correction invitation.** Within twenty-one **calendar** days following service of this
19 Notice (and supporting papers summarized above), defendants may **withdraw or appropriately**
20 **correct** challenged motions, affirmative defenses lacking evidentiary footing, citations inconsis-
21 tent with lodged authorities, and related papers Plaintiff identifies through Exhibits A–E without
22 prejudice to Plaintiff’s substantive opposition on the merits. Absent voluntary correction Plaintiff
23 may file any conforming sanctions motion citing this Notice date of service upon expiration of
24 subdiv. (c)(1).

1 **Service (subdivision (j)).** This Notice satisfies Plaintiff's statutory duty to furnish counsel with
2 written notice attaching or summarizing contemplated grounds sufficiently to permit corrective
3 action. Plaintiff will maintain proof of service consistent with subdivision (j).

4 **II. DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO**

5 I, FRANCISCUS DYLAN ROSARIO, declare:

- 6 1. **Identity.** I am Plaintiff in Case No. CGC-25-631801, Superior Court, County of San Fran-
7 cisco, and Plaintiff in propria persona. I have personal knowledge of the facts below except
8 those stated on information and belief, and as to those matters I believe them to be true based
9 on diligent inquiry.
- 10 2. **Purpose of this Declaration.** I submit this Declaration in support solely of Plaintiff's subdiv.
11 (c)(1) **service** Notice under Code of Civil Procedure section 128.7 and authenticate the Ex-
12 hibit list for parallel service of contemporaneous explanatory PDFs enumerated in Section I
13 (Exhibit Key tabular).
- 14 3. **Supporting documents.** I caused to be reproduced and served contemporaneously therewith
15 Exhibits labeled A through E using the filenames and subjects described above. Copies served
16 are substantially identical to Plaintiff's lodged cross-hearing package versions unless later
17 amended by Plaintiff for typography only.
- 18 4. **Knowledge of operative defense papers.** I have examined Defendants' operative motion
19 papers relating to Anti-SLAPP (section 425.16), motions under section 436, demurrers, and
20 MFL-related submissions in this department and case number. I believe those papers assert
21 positions and omissions described in Plaintiff's Exhibits A–E that Plaintiff will argue fall
22 within section 128.7, subdiv. (b).
- 23 5. **No Clerk filing for sanctions harbor.** I understand Plaintiff should not submit a subdivision
24 (c)-triggered sanctions motion to the Clerk or present identical relief to any judicial officer
25 until subdiv. (c)(1)'s prerequisite period lapses absent correction; I intend compliance.

26 I declare under penalty of perjury under the laws of the State of California that the foregoing is
27 true and correct.

28 Executed May 1, 2026, at Rohnert Park, Sonoma County, California.

Dated: May 1, 2026

A handwritten signature in blue ink, appearing to read 'Francisco' with a stylized flourish at the end.

/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com